

SPR090238 Limited Conservatorship of Ryan Harrell

County: sonoma

Division: Probate

Hearing date: 2027-01-14

Motion: Appointment as Limited Co-Conservator

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Limited Conservatorship of Ryan Harrell

SPR090238

Review

Appointment as Limited Co-Conservator

Tentative Ruling: NO APPEARANCES REQUIRED. This matter is CONTINUED to Thursday, November 5, 2026, at 3:30 p.m. in Department 63. As objections have been filed, pursuant to Local Rule 6.2 (F)(2), the parties are directed to meet and confer and make a reasonable and good faith attempt to informally resolve the controversy at a face-to-face conference (which is deemed to include video platforms such as Zoom), if possible, otherwise by telephone conference. If the matter has not been resolved, the parties shall each file statements of issues no later than seven (7) court days before the continued hearing date pursuant to Local Rule 6.2 (F)(3). As part of their meet and confer efforts the parties are directed to discuss the effect of Probate Code section 2105(c)(1), which requires: "Where there are two ... conservators, both must concur to exercise a power." If the Court were to appoint joint conservators, sometimes colloquially referred to as "co" conservators, who are in adversarial positions with each other, how do the parties propose the conservatorship will function to benefit and protect the interests of the conservatee? Would the Court risk creating a situation where the conservatee was without the benefit intended by the establishment of a conservatorship? How would that be in the best interests of the conservatee? The parties are also directed to discuss the legal standard required and the burden of proof at any evidentiary hearing, and on which party the burden of proof falls. Both matters should be addressed in the statements of issues filed prior to the next hearing.

As to the request to review the conservatorship, the Court notes the Office of the Court Investigator has initiated a review and that is also continued to the future hearing date.

End of Tentative Ruling

Administrative

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